

2:00 PM

LINE 6

26-CLJ-02675

WELLS FARGO BANK, N.A. VS. DEBORAH V BURSE

WELLS FARGO BANK, N.A.
DEBORAH V BURSE

EDGAR B LOPEZ
TAIRA G. SCOTT

MOTION FOR SUMMARY JUDGMENT PURSUANT TO CCP 437C

TENTATIVE RULING:

Plaintiff Wells Fargo, N.A.'s Unopposed Motion for Summary Judgment Pursuant to CCP 437c is DENIED WITHOUT PREJUDICE.

As a preliminary matter, notice of the motion, the motion, and its supporting papers were purportedly served by mail to "DEBORAH V BURSE, an individual c/o Taira Scott Esq." at "P.O. Box 8769, Philadelphia, PA 19101." (Jun. 11, 2026 Proof of Service, § 5.) However, Plaintiff Wells Fargo, N.A. ("Wells Fargo") was and is required to serve all papers electronically. (See Cal. Rules of Court, rule 2.251(c)(3); Super. Ct. San Mateo County Local Rules, rule 2.1.7(a)(7).)

Even were service by mail were permitted, there is no indication that the envelope was properly addressed to include Huron Legal Group, P.C., which is part of the address of record of Burse's counsel. (See Apr. 27, 2026 Answer, p. 1.) "Service by mail must be made in strict compliance with the mandates of [Code of Civil Procedure] sections 1013 and 1013a." (*Aquino v. Superior Court* (2021) 73 Cal.App.5th 104, 111.) Even minor technical defects such as omitting the law firm's name from the address render service by mail ineffective, as is the case here. (*Triumph Precision Products, Inc. v. Insurance Co. of North America* (1979) 91 Cal.App.3d 362, 364.)

Therefore, there is no indication notice of the motion was properly served, and a "court lacks jurisdiction to rule on a motion that has not been properly noticed for hearing on the date in question." (*Diaz v. Professional Community Management, Inc.* (2017) 16 Cal.App.5th 1190, 1204–1205.) Accordingly, the motion is denied without prejudice to a renewed motion supported by valid proof of proper service.

If the tentative ruling is uncontested, it shall become the order of the Court without need for a formal order.

2:00 PM

LINE 7

26-UDL-00812

ZAHER DAHBOUR VS. AHMAD SULYMAN

ZAHER DAHBOUR
AHMAD SULYMAN

PRO SE

MOTION TO VACATE DEFAULT JUDGMENT

TENTATIVE RULING:

The court DENIES the unopposed motion for relief for default.

First, the court denies the motion for lack of sufficient notice of the hearing. The proof of service states the moving papers were personally served on plaintiff on September 2, 2026. The hearing is on September 22, 2026, which is less than the 16 court days' notice required by Code of Civil Procedure section 1005.

Second, the notice of motion indicates defendant seeks relief pursuant to Code of Civil Procedure section 473.5. That statute requires a motion for relief to be accompanied by an affidavit or declaration showing that defendant's lack of actual notice was not caused by his avoidance of service or inexcusable neglect. Defendant did not file a declaration with his motion. Moreover, he makes no arguments regarding relief under Code of Civil Procedure section 473.5. On September 15, 2026, defendant filed a declaration in support of an unidentified motion hearing. The declaration describes alleged threats and harassment directed at defendant by plaintiff. It does not address service of the summons and complaint or defendant's actual notice of this action. Furthermore, there is no proof that it was served on plaintiff.

Third, to the extent the motion could be construed to seek relief under Code of Civil Procedure section 473, subdivision (d) for lack of proper service of the summons and complaint, defendant still fails to provide a declaration indicating he was not served.

If the tentative ruling is uncontested, it shall become the order of the court without the need for a formal order.

2:00 PM

LINE 8

26-UDL-00970 DOUGLAS SCOTT STILLINGER VS. TODD YANCEY, ET AL.

DOUGLAS SCOTT STILLINGER
TODD YANCEY

STEVEN T. NAUMCHIK

DEFENDANT TODD YANCEY'S MOTION TO COMPEL FURTHER RESPONSES TO SPECIAL INTERROGATORIES (SET ONE) AND TO DEMAND FOR PRODUCTION OF DOCUMENTS (SET ONE), OR, AS TO THE DEMAND, TO COMPEL RESPONSES WITHOUT OBJECTION; REQUEST FOR MONETARY SANCTIONS

TENTATIVE RULING:

The matter is continued to September 29, 2026 at 2:00 PM.



POSTED: 3:00 PM